

Agreement on the Distribution of Pathogen Resources

「Act on the Promotion of Collection, Management, and Utilization of Pathogen Resources」 Article 14, Paragraph 1, in accordance with Article 10, Paragraph 4 of the implementing ordinance of the same Act, the following agreement is made regarding the distribution of pathogen resources.

Approval No.	(Please fill out the document number of the official reply letter to the application for distribution)					
Applicant	Name		Institution and Department		Tel.	
					E-mail.	

Application Contents					
Project Title					
Period of Utilization					
Purpose of Use	☐ Vaccine and therapeutic agent research & development ☐ Diagnostic technology research ☐ Basic research ☐ Product development research ☐ Education ☐ Quality control ☐ Commercial use ☐ Etc. (Reason: _____)				
Application Contents	No.	Name of pathogen resource	NCCP No.	Type of Resource	Unit(ea)
Agreement Contents	1. The "pathogen resources" defined in this Agreement include. (1) Pathogens and progenies, (2) unmodified derivatives (pathogens that have not undergone transformation through biological processes such as nucleic acids, proteins, and inactivated pathogens). 2. The party who has received an approval for distribution of pathogen resources in accordance with article 14, paragraph 1 of the Act, shall use the acquired resources in accordance with the application for distribution and written plan for management and utilization, and in case of any change, the approval for change on the distribution should be obtained in advance from the director of Korea National Institute of Health, or an application for change in distribution should be made. 3. The party who has received an approval for distribution of the pathogen resources in accordance with article 14, paragraph 1 of the Act, shall handle the acquired resources in compliance with the safety management standards for pathogen resources. 4. The party who has received an approval for distribution of the pathogen resources in accordance with the article 14, paragraph 1 of the act, shall acknowledge that the acquired pathogen resources are national assets, and cannot claim intellectual property rights or other rights for the acquired resources. 5. The party who has received an approval for distribution of the pathogen resources in accordance with article 14, paragraph 1 of the Act shall not provide, transfer, or redistribute the acquired resources to third parties. 6. When producing and selling products using pathogen resources, the National Culture Collection for Pathogens is notified in advance of the product name and microbial use method. In addition, prior permission must be obtained when the National Culture Collection for Pathogens NCCP number or pathogen resource name is included in commercial promotional materials such as products or printed materials.				

7. If, the party who has received an approval for distribution of the pathogen resources in accordance with article 14, paragraph 1 of the Act, wishes to release the results from the utilization of the acquired resources, they shall specify it with an acknowledgement which includes the resource number, and also document that it was obtained from the National Culture Collection for Pathogens or the Specialized Pathogen Resource Bank. In addition, research outcomes must be submitted to the Pathogen Resource Bank within three months of their publication date.
- How to write an acknowledgement in English: The pathogen resources (NCCP 00000, International Exchange Resource No.0000*) for this study were provided by the National Culture Collection for Pathogens, National Institute of Health or the 000 Specialized Pathogen Resources Bank.
 - * Applicable only to resources acquired from foreign institutions.
8. For obtaining patents or other intellectual property rights of the results from utilizing the resources, the party who has received an approval for distribution of the pathogen resources in accordance with article 14, paragraph 1 of the Act shall consult with the bank on the basis that the resources were acquired from in advance.
9. The party who has received an approval for distribution of the pathogen resources in accordance with article 14, paragraph 1 of the Act shall not hold the bank which the resources were acquired from accountable for any damages pertaining to the acquired resources, in terms of safety, name of resources, accuracy of data, genetic purity, and use of resources, and shall follow their national quarantine and biosecurity norms.
10. If the party receiving an approval for distribution of the pathogen resources in accordance with article 14, paragraph 1 of the Act receives the distribution approval through deceit or fraudulent means or, changes the approved conditions such as purpose of use without an approval for change on the distribution or fails to comply with safety management standards, such party may be punished in accordance with the article 31, paragraph 1 of 「Pathogen Resources Act」.
11. We agree on the above matters and promise that the parties below shall discuss and make decisions regarding the interpretations on all matters except those presented above or those related to changes in the content.
- ※ The decision to make changes to specific contents in this agreement shall be decided and documented following consultations between the bank and the party who has received approval for distribution of pathogen resources in accordance with article 14, paragraph 1 of the Act.

Date of agreement:

yyyy.mm.dd.

Applicant

(Signature or Seal)

Date of agreement:

yyyy.mmdd.

Head of the 000 Pathogen Resource Bank:

(Signature or Seal)